

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JUSTIN SAPINI,

Index No. 160000/2024

Plaintiff,

-against-

**EXPERT WITNESS
EXCHANGE PURSUANT
TO CPLR 3101(d)**

ANTHONY F. FERRARA and METRO-NORTH COMMUTER
RAILROAD,

Defendants.
-----X

S I R S:

Pursuant to CPLR § 3121, CPLR §3101(d) and 22 NYCRR §202.17, the report of Dr. Marc J. Katzman, dated December 8, 2025, concerning plaintiff Justin Sapini's MRIs of the right and left knee performed on July 3, 2023, MRI of the right shoulder performed on May 24, 2023, chest x-ray performed on September 10, 2018 and Brain MRI performed on August 8, 2023, is annexed hereto and herewith served upon you.

PLEASE TAKE NOTICE, that responding defendants may rely upon the expert testimony of Dr. Marc J. Katzman during the trial of this action. If called, Dr. Katzman's testimony will be with regard to his findings, conclusions and opinions in accordance with his annexed report dated February 11, 2025.

PLEASE TAKE FURTHER NOTICE, that responding defendants reserve the right to amend/supplement this response, herein if any additional information becomes known/available.

Dated: Woodbury, New York
February 4, 2026

Yours, etc.

MILBER, MAKRIS, PLOUSADIS
& SEIDEN, LLP.

A handwritten signature in cursive script, appearing to read "Stephen F. Zaklukiewicz", followed by a horizontal line.

By: STEPHEN F. ZAKLUKIEWICZ, ESQ.
Attorneys for Defendants
ANTHONY F. FERRARA and METRO-
NORTH COMMUTER RAILROAD
1000 Woodbury Road, Suite 402
Woodbury, New York 11797
(516) 712-4000
File No.: 1805CS-28142M

TO:

HOWARD B. STOLZENBERG
STOLZENBERG CORTELLI, LLP
Attorneys for Plaintiff
JUSTIN SAPINI
305 Old Tarrytown Road
White Plains, New York 10603
(914) 361-4888

Marc J. Katzman, MD
Diplomate of the American Board of Radiology
Board Certified in Neuroradiology

CLAIMANT NAME: Justin Sapini
CLAIMANT DOB: 12/21/1995
CLAIM HANDLER CO.: Milber Makris Plousadis & Seiden LLP
CLAIM NUMBER: 1805CS28142M
DATE OF CLAIM: 04/23/2023
D&D FILE NUMBER: 22725030856

December 08, 2025

To Whom It May Concern:

Pursuant to your request, I performed an expert radiological interpretation on 12/08/2025 on the following radiology imaging study performed on the above-named claimant:

MRI Right Knee

07/03/2023

LHR - Mid Rockland Imaging (New City, NY)

My findings are as follows:

The MRI of the right knee performed on 07/03/2023 reveals no evidence of recent fracture or dislocation. The bone marrow signal is within normal limits. There is no bone marrow edema or contusion. There is no osteochondral lesion. The articular cartilage is intact in all three compartments. The medial and lateral menisci are intact. The anterior and posterior cruciate ligaments are intact. The medial and lateral collateral ligaments are intact. The iliotibial band is intact. There is no evidence of posterolateral corner injury. The gastrocnemius, popliteus, and biceps femoris tendons are intact. There is no evidence of patellar subluxation injury. The patellofemoral ligaments and patellar retinaculum are intact. The quadriceps and patellar tendons are intact. There is no joint effusion or hemarthrosis. There is no intra-articular loose body. The superficial soft tissues are intact.

In conclusion, the MRI of the right knee performed on 07/03/2023 reveals no recent traumatic injury or internal derangement.

I, Marc J. Katzman, being a physician duly licensed to practice medicine in the State of New York pursuant to CPLR Section 2106, hereby affirm under the penalty of perjury that the information contained within this document was prepared and is the work product of the undersigned and that the statements contained herein are true and accurate to the best of my knowledge and information.

Sincerely,



Marc J. Katzman, MD D.A.B.R.
CAQ Neuroradiology
New York State License # 256350

Marc J. Katzman, MD
Diplomate of the American Board of Radiology
Board Certified in Neuroradiology

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December 08, 2025

To Whom It May Concern:

Pursuant to your request, I performed an expert radiological interpretation on 12/08/2025 on the following radiology imaging study performed on the above-named claimant:

MRI Left Knee

07/03/2023

LHR - Mid Rockland Imaging (New City, NY)

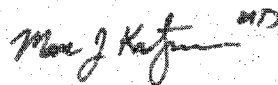
My findings are as follows:

The MRI of the left knee performed on 07/03/2023 reveals no evidence of recent fracture or dislocation. The bone marrow signal is within normal limits. There is no bone marrow edema or contusion. There is no osteochondral lesion. The articular cartilage is intact in all three compartments. The medial and lateral menisci are intact. The anterior and posterior cruciate ligaments are intact. The medial and lateral collateral ligaments are intact. The iliotibial band is intact. There is no evidence of posterolateral corner injury. The gastrocnemius, popliteus, and biceps femoris tendons are intact. There is no evidence of patellar subluxation injury. The patellofemoral ligaments and patellar retinaculum are intact. The quadriceps and patellar tendons are intact. There is no joint effusion or hemarthrosis. There is no intra-articular loose body. The superficial soft tissues are intact.

In conclusion, the MRI of the left knee performed on 07/03/2023 reveals no recent traumatic injury or internal derangement.

I, Marc J. Katzman, being a physician duly licensed to practice medicine in the State of New York pursuant to CPLR Section 2106, hereby affirm under the penalty of perjury that the information contained within this document was prepared and is the work product of the undersigned and that the statements contained herein are true and accurate to the best of my knowledge and information.

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D&D FILE NUMBER: 22725030856

December 08, 2025

To Whom It May Concern:

Pursuant to your request, I performed an expert radiological interpretation on 12/08/2025 on the following radiology imaging study performed on the above-named claimant:

MRI Right Shoulder

05/24/2023

LHR – Mid Rockland Imaging (New City, NY)

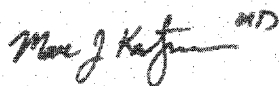
My findings are as follows:

The MRI of the right shoulder performed on 05/24/2023 reveals no evidence of recent fracture or dislocation. There is no acromioclavicular separation injury. The bone marrow signal is within normal limits. There is no acute bone marrow edema or bone contusion. There is no Hill-Sachs or osseous Bankart lesion. The glenohumeral articular cartilage appears smooth and intact. The glenoid labrum is intact. There is no focal labral tear. The biceps anchor is intact. The long head of the biceps tendon is well seated within the bicipital groove. There is no evidence of biceps tendinosis or tenosynovitis. There is no glenohumeral joint effusion or hemarthrosis. There is no capsular edema or evidence of adhesive capsulitis. There is no subdeltoid/subacromial bursitis. There is no muscle strain or tear. The rotator cuff muscles and tendons are intact; there is no tendinosis or tear. There is no disproportionate muscle atrophy. The deltoid muscle is intact. The superficial soft tissues are intact.

In conclusion, the MRI of the right shoulder performed on 05/24/2023 reveals no evidence of recent traumatic injury to the right shoulder. The examination is unremarkable.

I, Marc J. Katzman, being a physician duly licensed to practice medicine in the State of New York pursuant to CPLR Section 2106, hereby affirm under the penalty of perjury that the information contained within this document was prepared and is the work product of the undersigned and that the statements contained herein are true and accurate to the best of my knowledge and information.

Sincerely,



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D&D FILE NUMBER: 22725030856

December 08, 2025

To Whom It May Concern:

Pursuant to your request, I performed an expert radiological interpretation on 12/08/2025 on the following radiology imaging study performed on the above-named claimant:

X-Ray Chest

09/10/2018

LHR – Rockland Diagnostic Imaging (New City, NY)

My findings are as follows:

The chest x-ray performed on 09/10/2018 consists of PA and lateral views. The lungs are clear bilaterally. There is no pulmonary infiltrate, consolidation, or pleural effusion. There is no cardiomegaly or pulmonary vascular congestion. The sternum and rib cages appear intact. The thoracic spine appears intact.

In conclusion, the chest x-ray performed on 09/10/2018 reveals no acute chest findings.

THIS EXAMINATION PREDATES THE ACCIDENT ON 04/23/2023.

I, Marc J. Katzman, being a physician duly licensed to practice medicine in the State of New York pursuant to CPLR Section 2106, hereby affirm under the penalty of perjury that the information contained within this document was prepared and is the work product of the undersigned and that the statements contained herein are true and accurate to the best of my knowledge and information.

Sincerely,



Marc J. Katzman, MD D.A.B.R.
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D&D FILE NUMBER: 22725030856

December 08, 2025

To Whom It May Concern:

Pursuant to your request, I performed an expert radiological interpretation on 12/08/2025 on the following radiology imaging studies performed on the above-named claimant:

MRI Brain	08/08/2023	Lenox Hill Radiology (New York, NY)
DTI Brain	08/08/2023	Lenox Hill Radiology (New York, NY)
MR NeuroQuant Brain	08/08/2023	Lenox Hill Radiology (New York, NY)

My findings are as follows:

The MRI of the brain performed on 08/08/2023 reveals normal parenchymal and ventricular configuration of the brain. There is no cerebral contusion, recent intracranial hemorrhage, extra-axial hematoma, or posttraumatic encephalomalacia. There is no epidural or subdural hematoma. There is no abnormal intracranial mass, mass effect, midline shift, hydrocephalus, or abnormal extra-axial fluid collection. There is no signal abnormality within the brain parenchyma and CSF spaces. There is no recent ischemic injury. There are no regions of abnormal blooming artifact within the brain parenchyma and CSF spaces on susceptibility weighted imaging to suggest evidence of parenchymal microhemorrhage, axonal shearing injury, or superficial siderosis. The cerebral hemispheres, brainstem, and cerebellar hemispheres appear within normal limits. There is normal midline morphology. There is no abnormal pituitary or pineal gland enlargement. There is no Chiari malformation of the posterior fossa. The internal auditory canals outline normally. The calvaria of the skull and scalp soft tissues appear intact. **In conclusion, the MRI of the brain performed on 08/08/2023 reveals no evidence of traumatic injury to the brain. There is no intracranial hemorrhage, extra-axial hematoma, cerebral contusion, or posttraumatic encephalomalacia. The examination is normal.**

The diffusion tensor imaging study of the brain performed on 08/08/2023 reveals fractional anisotropy values within the major white matter tracts of the cerebrum to be within normal limits. There is qualitative and quantitative symmetry of the major white matter tracts of the brain on the color FA maps. There is no evidence of significant white matter microstructural disruption. **In conclusion, the DTI study of the brain performed on 08/08/2023 is within normal limits and reveals no evidence of significant white matter microstructural disruption. **Please see footnotes below regarding advanced imaging techniques.**

The NeuroQuant volumetric analysis of the brain performed on 08/08/2023 reveals normal age-appropriate morphology of the brain parenchyma. The cerebral cortical gyral and sulcal distribution are normal. The brainstem and cerebellar hemispheres also appear age-appropriate and normal. There is no evidence of asymmetric volume loss or atrophy. The intraventricular and extra-ventricular CSF spaces are normal for age. There is no ex vacuo dilatation of the ventricles or disproportionate sulcal widening. There is no evidence of raised intracranial pressure or impending herniation. There is no evidence of cortical truncation, post-traumatic encephalomalacia, or post-traumatic involution of the cerebral cortex or major white matter tracts. **In conclusion, the NeuroQuant volumetric analysis of the brain performed on 08/08/2023 reveals no evidence of age-disproportionate or post-traumatic brain atrophy. **Please see footnotes below regarding advanced imaging techniques.**

FOOTNOTES REGARDING ADVANCED IMAGING TECHNIQUES:

It should be noted that according to the American College of Radiology, the Radiological Society of North America, and the American Society of Neuroradiology, there is insufficient evidence supporting the routine clinical use of advanced neuroimaging techniques (such as DTI, fMRI, MRI Spectroscopy, PET/SPECT) for diagnosis and/or prognostication at the individual patient level. RSNA Statement on Traumatic Brain Injury (TBI) Imaging Reviewed: 06/24/2025 (<https://www.rsna.org/-/media/Files/RSNA/Media/Traumatic-Brain-Injury-TBI-Imaging>); Imaging Evidence and Recommendations for Traumatic Brain Injury: Advanced Neuro- and Neurovascular Imaging Techniques M. Wintermark, P.C. Sanelli, Y. Anzai, A.J. Tsiouris, and C.T. Whitlow, on behalf of the American College of Radiology Head Injury Institute (Am J Neuroradiol; 36:E1-E11. Feb 2015.); ACR Appropriateness Criteria Head Trauma: 2021 Update (Journal of the American College of Radiology; Volume 18, Number 5S, May 2021).

I, Marc J. Katzman, being a physician duly licensed to practice medicine in the State of New York pursuant to CPLR Section 2106, hereby affirm under the penalty of perjury that the information contained within this document was prepared and is the work product of the undersigned and that the statements contained herein are true and accurate to the best of my knowledge and information.

Sincerely,



Marc J. Katzman, MD D.A.B.R.
CAQ Neuroradiology
New York State License # 256350

Marc J. Katzman, M.D., D.A.B.R.**Employment**

10/2022 - Present	New York-Presbyterian - Columbia University Medical Center (New York, NY) Assistant Professor of Radiology / Neuroradiologist
08/2021 - Present	RadNet Diagnostic Imaging (New York, NY) Neuroradiologist and Orthopedic Radiologist
08/2021 - Present	Excel Medical Imaging (Port Richey, FL) Neuroradiologist and Orthopedic Radiologist
07/2019 - 07/2021	ProHealth Radiology (Lake Success, NY) Neuroradiologist and Orthopedic Radiologist
08/2015 - 06/2019	Stand-Up MRI of Great Neck (Great Neck, NY) Neuroradiologist and Orthopedic Radiologist
07/2011 - 08/2015	Zwanger-Pesiri Radiology (Lindenhurst, NY) Neuroradiologist and Orthopedic Radiologist
07/2011 - Present	Jacobi Medical Center (Bronx, NY) Part-time Attending Neuroradiologist

Training

07/2010 - 06/2011	Columbia-Presbyterian Medical Center (New York, NY) Fellowship in Neuroradiology
07/2006 - 06/2010	Albert Einstein College of Medicine - Jacobi Medical Center (Bronx, NY) Residency in Radiology
07/2005 - 06/2006	Montefiore New Rochelle Hospital (New Rochelle, NY) Transitional Year Internship – Medicine & Surgery

Education

08/2001 - 06/2005	Albert Einstein College of Medicine (Bronx, NY) M.D.
09/1997 - 06/2001	Yeshiva University (New York, NY) B.A., Chemistry and Biology, <i>summa cum laude</i> , Dean's List.

Academic Appointments

10/2022 – Present	Assistant Professor of Radiology , NYP Columbia University Medical Center
12/2012 – Present	Diplomate , American Board of Radiology
10/2011 – 08/2015	Adjunct Clinical Professor , NY College of Osteopathic Medicine
01/2009 - 12/2010	Chief Resident , Department of Radiology, Jacobi Medical Center

07/2007 - 06/2008

Departmental Representative, Albert Einstein College of Medicine Committee on Graduate Medical Education**Licensure & Certification**

11/2021 **Texas State Medical License #T4190**
05/2015 **Florida State Medical License #ME 124051**
10/2012 **Neuroradiology Subspecialty Certificate of Added Qualification (C.A.Q.)**
07/2012 **New York State Workers' Compensation Board Authorized Provider**
06/2010 **Board Certification** – American Board of Radiology
03/2010 **New York State Medical License #256350**

Publications & Presentations

05/2010 Katzman MJ, Leibman AJ, Kwok L. "Evaluation and Treatment of Pediatric Breast Infections." Exhibit presented at the American Roentgen Ray Society annual meeting, San Diego, CA.

04/2010 Katzman MJ, Leibman AJ, Kwok L. "Utility of Breast Sonography in the Management of Pediatric Breast Infections" Exhibit presented at the Society for Pediatric Radiology Annual Meeting, Boston, MA.

04/2009 Katzman MJ, Leibman AJ and Salsamendi J. "Utility of Breast Sonography in Evaluating the Pediatric Population." Presented at the Society for Pediatric Radiology Annual Meeting, Carlsbad, CA.

07/2007 Cynamon J, Katzman MJ, Goodman E. "Percutaneous Gastrostomy of the Excluded Gastric Segment after Roux-en-Y Gastric Bypass Surgery." JVIR 2007; 18:914-919.

11/2004 Cynamon J, Katzman MJ, et al. "Combination Pulse Spray Thrombolysis and Mechanical Thrombectomy with the Angiojet Device to Treat Acute DVT: Indication and Techniques." Presented at the Advanced Interventional Management Symposium, New York, NY.

04/2000 Matthiesen SH, Katzman MJ and Satir BH. "Exocytosis: The Phosphoglucosyltransferase Activity of Parafusin Localized to Secretory Vesicles is Unlikely to be Related to its Function in Secretion." The FASEB Journal 2000; 14(4):A782.

Awards

2008 American Roentgen Ray Society Introduction to Research Scholarship
2005 Class Representative for the Albert Einstein College of Medicine Graduation
2001 Letter of Commendation for Excellence in Histology & Cell Biology
2001 American Institute of Chemists Award
2001 Jacob & Ethel Blackman Memorial Award for Excellence in Chemistry
1999 Ernst & Hedwig Roth Institute Scholar
1997 Yeshiva University Distinguished Scholarship

Memberships

American Medical Association
Medical Society of the State of New York
Nassau County Medical Society
Radiological Society of North America
American Roentgen Ray Society
American Society of Neuroradiology – Senior member